

MuscleBoxPro Gym Partnership Program - Standard Terms

MUSCLEBOXPRO

Gym Partnership Program — Standard Terms

These are the standard terms under which MuscleBoxPro (BlendBox Innovations LLP) places its automated protein-shake vending machines at partner gyms on a profit-sharing basis. When a gym joins the program, these terms are incorporated into a signed placement agreement together with that gym’s specific details (installation address, machine ID, effective date, etc.).

MuscleBoxPro	BlendBox Innovations LLP, operating under the brand “MuscleBoxPro”
Standard Agreement Term	24 months
Security Deposit	₹50,000

1. PURPOSE OF THE AGREEMENT

- 1.1 MuscleBoxPro operates automated protein shake vending machines under the brand MuscleBoxPro.
- 1.2 MuscleBoxPro agrees to place one or more protein shake vending machines (“**Machine**”) at the Gym’s premises for the sale of protein shakes to customers, members, and other permitted users.
- 1.3 The Machine shall operate under a profit-sharing arrangement between MuscleBoxPro and the Gym.
- 1.4 This Agreement does not constitute a sale of the Machine to the Gym.
- 1.5 The Machine shall remain the property of MuscleBoxPro throughout the term of this Agreement.

2. MACHINE DETAILS

Each Machine is identified by its brand (MuscleBoxPro), model, unique Machine ID, serial number, and stated Machine Value, and is installed at an agreed location within the Gym’s premises. These site-specific details are recorded at the time of installation in a signed Installation Certificate, which forms part of the placement agreement for that Machine.

3. OWNERSHIP AND NATURE OF RELATIONSHIP

- 3.1 The Machine shall remain the sole and exclusive property of MuscleBoxPro.
- 3.2 Nothing in this Agreement shall constitute a sale, transfer, assignment, or other transfer of ownership of the Machine to the Gym.
- 3.3 The Gym receives only a limited contractual right to host and permit operation of the Machine at the approved premises during the term of this Agreement.
- 3.4 The Gym shall not: - sell the Machine; - pledge or mortgage the Machine; - create any lien over the Machine; - lease or sublease the Machine; - transfer the Machine to another person or entity; - relocate the Machine without written approval; - represent itself as owner of the Machine; or - permit any third party to claim ownership over the Machine.
- 3.5 **Nature of relationship.** Notwithstanding the title of this Agreement or any reference to “profit sharing” or “partnership,” the Parties are independent contracting parties on a principal-to-principal basis. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, trust, fiduciary relationship, or employer-employee relationship between the Parties for any purpose, including under the Indian Partnership Act, 1932. Neither Party has authority to bind the other except as expressly stated in this Agreement, and neither Party shall hold itself out as an agent, partner, or joint venturer of the other.

4. TERM

- 4.1 The Agreement shall commence on the Effective Date or the Machine installation date, whichever is later.
- 4.2 The initial term shall be 24 months, unless terminated earlier in accordance with this Agreement.
- 4.3 The Parties may mutually agree in writing to renew the Agreement, including any revision to the commercial

terms in Schedule B, at least 30 days before expiry. Unless the Parties agree otherwise in writing at renewal, the cumulative cup count, cumulative Gross Protein Shake Sales, and Milestone status achieved during the expiring term shall carry forward into the renewed term.

5. SECURITY DEPOSIT

5.1 The Gym shall pay MuscleBoxPro a refundable security deposit of ₹50,000 (Rupees Fifty Thousand Only).

5.2 The security deposit is not consideration for purchase of the Machine and shall not be treated as a lease payment.

5.3 The security deposit shall serve as security for the Gym's obligations under this Agreement.

5.4 MuscleBoxPro may adjust the security deposit against: - physical damage to the Machine; - missing components or accessories; - unauthorized modifications; - unauthorized relocation; - misuse or negligence attributable to the Gym; - repair costs; - recovery costs where attributable to the Gym; - unpaid amounts; or - other amounts contractually payable by the Gym.

5.5 For ordinary accidental or repairable damage, MuscleBoxPro may deduct the actual, reasonable repair/replacement cost from the security deposit, supported by an itemized estimate or invoice provided to the Gym.

5.6 In cases of intentional, negligent, reckless, or severe physical damage, MuscleBoxPro may forfeit the entire security deposit and may additionally recover any repair or replacement cost exceeding the deposit.

5.7 If the cost of damage exceeds ₹50,000, the Gym shall remain liable for the balance.

5.8 After termination and return of the Machine, MuscleBoxPro shall settle all outstanding amounts and refund the remaining security deposit, if any, within 30 days, together with a written statement of any deductions made.

6. PROFIT-SHARING MODEL

6.1 **Initial ratio.** Until the Milestone (defined below) is reached, Net Profit from protein shake sales shall be shared **80% MuscleBoxPro : 20% Gym**.

6.2 **Post-Milestone ratio.** From the point the Milestone is reached, Net Profit from all subsequent protein shake sales shall be shared **50% MuscleBoxPro : 50% Gym** for the remainder of the Term.

6.3 **The Milestone** is reached on the earlier of: (a) 15,000 cumulative completed paid cups sold through the Machine; or (b) ₹5,00,000 cumulative Gross Protein Shake Sales (excluding GST/other taxes) through the Machine, whichever occurs first. This threshold and ratio are also recorded in Schedule B and Schedule C, which shall be read consistently with this Clause 6. Where more than one Machine is placed at the same Gym premises (whether under this Agreement or a related agreement), the Milestone shall be tracked separately for each Machine unless the Parties agree otherwise in writing.

6.4 **Cup count methodology.** The cumulative cup count and sales figure shall be determined primarily from the Machine's transaction and dispensing records. The following shall generally not count toward the Milestone or toward Gross Protein Shake Sales: - cancelled, refunded, or failed transactions; - failed dispensing; - test shakes or internal testing; and - complimentary/free shakes or other transactions not representing a completed paid customer sale.

6.5 Relocation of the Machine does not reset the cumulative cup count, cumulative sales figure, or Milestone progress (see Clause 21.5).

6.6 **Gym audit right.** MuscleBoxPro shall, upon written request no more than once per calendar quarter, provide the Gym a transaction-level extract (cup count, gross sale value, and applicable exclusions under Clause 6.4) covering the requested period within 10 business days. If the Gym disputes the figures in good faith with reasonable supporting basis, the Parties shall reconcile within 15 business days; unresolved discrepancies affecting more than 2% of the disputed period's Gross Protein Shake Sales shall be escalated per Clause 46.

6.7 **Retail pricing.** MuscleBoxPro shall have sole discretion to set and revise the retail selling price of protein shakes dispensed through the Machine. MuscleBoxPro shall provide the Gym at least 7 days' prior written notice of any single price revision exceeding 10%.

7. NET PROFIT CALCULATION

Net Profit = Gross Customer Sales – Applicable Taxes – Agreed Direct Variable Costs

7.1 Agreed direct variable costs may include: ingredient cost; cup/package cost; payment gateway/transaction charges; refunds; promotional discounts where applicable; and other direct variable costs expressly agreed by the Parties in writing.

7.2 **Taxes.** Gross Customer Sales shall be considered exclusive of applicable GST or other indirect taxes collected on behalf of the Government for purposes of calculating Net Profit. Taxes collected from customers shall not constitute distributable profit.

7.3 **Excluded costs.** Unless expressly agreed otherwise in writing, the following shall not be deducted while calculating Net Profit: general corporate overhead; employee salaries of MuscleBoxPro; depreciation; financing costs; general marketing expenditure; general administrative expenses; and other general business expenses.

7.4 **Cost schedule.** MuscleBoxPro may maintain an agreed cost schedule for ingredients, cups, packaging, and other direct variable costs. Material changes to the agreed methodology shall be communicated to the Gym in writing at least 15 days in advance and documented as an amendment to Schedule C.

8. MONTHLY SETTLEMENT

8.1 Profit-sharing shall be calculated on a monthly basis.

8.2 At the end of each calendar month, MuscleBoxPro shall calculate Gross Customer Sales, applicable taxes, direct variable costs, Net Profit, the applicable profit-sharing ratio, the Gym's share of Net Profit, advertising revenue, the Gym's advertising share, electricity reimbursement, and applicable adjustments.

8.3 The Gym's net amount shall be settled within 15 days after the end of the relevant month, subject to completion of transaction reconciliation and availability of complete payment records.

8.4 Any demonstrable discrepancy shall be reviewed by the Parties in good faith per Clause 6.6.

8.5 **Late settlement.** If MuscleBoxPro fails to settle an undisputed amount within the 15-day window under Clause 8.3, simple interest at 12% per annum shall accrue on the overdue undisputed amount from the due date until paid.

8.6 **Withholding tax.** Each Party shall be responsible for its own tax deduction at source (TDS) obligations, if any, applicable to payments made under this Agreement in accordance with the Income-tax Act, 1961, and shall furnish the other Party the relevant withholding tax certificate (e.g., Form 16A) within the timelines prescribed by law where tax has been deducted at source.

9. ADVERTISING REVENUE

9.1 MuscleBoxPro may use the Machine's screen, display area, or other approved surfaces for advertising.

9.2 Advertising revenue shall be treated separately from protein shake sales.

9.3 Advertising revenue shall be distributed throughout the entire Agreement as **80% MuscleBoxPro : 20% Gym.**

9.4 The advertising revenue ratio shall remain 80:20 even after the shake-sale profit-sharing ratio changes to 50:50.

9.5 Advertising arrangements shall generally be managed by MuscleBoxPro.

9.6 MuscleBoxPro does not guarantee any minimum advertising revenue.

9.7 Advertising content shall be subject to applicable law and MuscleBoxPro's advertising policies, and shall not include content that is unlawful, defamatory, or reasonably objectionable to a fitness-industry audience; the Gym may flag such concerns in writing for review.

10. ELECTRICITY REIMBURSEMENT

10.1 MuscleBoxPro shall provide the Gym an electricity reimbursement calculated at ₹1,000 for every completed 1,000 paid cups sold.

10.2 For each three-month review period, a minimum electricity reimbursement of ₹1,000 shall apply even if fewer than 1,000 cups are sold during that period.

10.3 The calculation shall therefore be:

Cups sold in 3-month period	Electricity reimbursement

0-999	₹1,000
1,000-1,999	₹1,000
2,000-2,999	₹2,000
3,000-3,999	₹3,000
4,000-4,999	₹4,000

10.4 Only completed blocks of 1,000 paid cups shall generate additional ₹1,000 reimbursement.

10.5 The minimum ₹1,000 reimbursement shall apply once per three-month review period.

10.6 Unused electricity reimbursement shall not carry forward to a subsequent three-month period.

10.7 Electricity reimbursement shall be settled as part of the applicable commercial reconciliation.

11. WATER

11.1 MuscleBoxPro shall be responsible for filling/replenishing the Machine's water supply required for normal operation.

11.2 The Gym shall provide reasonable access to the agreed water source/storage arrangement.

11.3 The cost of water used for Machine operation shall be borne by MuscleBoxPro, unless otherwise specified in the Commercial Schedule.

11.4 The Gym shall not independently modify the Machine's water system.

11.5 Where the available water does not meet MuscleBoxPro's prescribed operating/quality requirements, MuscleBoxPro may suspend operation until a suitable water arrangement is available, and shall notify the Gym of the specific requirement not met.

12. PERFORMANCE REVIEW

12.1 MuscleBoxPro shall review Machine performance every three months.

12.2 The review may consider cups sold, average monthly sales, revenue, Net Profit, Machine utilization, ingredient consumption, maintenance requirements, customer usage, operational problems, and overall commercial viability.

12.3 MuscleBoxPro may determine whether continued placement of the Machine at the Gym is commercially viable.

12.4 If MuscleBoxPro determines that the Machine is commercially underperforming, MuscleBoxPro may remove and redeploy the Machine by providing the Gym 15 days' written notice, provided that no removal under this Clause 12 shall take effect within the first 6 months from the Installation Date, so as to give the placement a fair initial run.

12.5 Removal for commercial underperformance shall not affect MuscleBoxPro's ownership of the Machine or the Gym's obligation to settle outstanding amounts, and no early-termination charge under Clause 36.2 shall apply to the Gym in this case.

12.6 **Reciprocal review right (Gym).** If, in any two consecutive three-month review periods, MuscleBoxPro (a) fails to meet the uptime commitment in Clause 19.4, or (b) fails to replenish ingredients/water within 3 business days of a Gym-reported stock-out on two or more occasions, the Gym may request removal of the Machine on 15 days' written notice. In such case, the Gym shall not owe any early-termination charge under Clause 36.2, though outstanding settlement amounts remain payable by either Party as applicable.

13. GYM RESPONSIBILITIES

The Gym shall: - provide suitable space for the Machine; - provide the required electricity connection; - provide reasonable access to the Machine for MuscleBoxPro personnel; - provide reasonable protection against theft, vandalism, and avoidable damage; - promptly report damage or malfunction; - not move or modify the Machine; - not permit unauthorized servicing; - not modify ingredients; - not permit unauthorized persons to access internal Machine components; - maintain reasonable cleanliness around the Machine; - comply with reasonable Machine operating instructions; - cooperate with MuscleBoxPro's maintenance and replenishment personnel; and - ensure the Machine remains accessible during agreed operating/service hours.

14. INGREDIENT AND PROTEIN CONTROL

14.1 All protein powder and other ingredients used in the Machine shall be supplied, approved, or authorized by MuscleBoxPro.

14.2 The Gym shall not add, remove, replace, dilute, mix, or modify any protein or other ingredient.

14.3 In particular, the Gym shall not: add its own protein powder; remove MuscleBoxPro protein; replace protein; mix third-party protein; add supplements; alter ingredient ratios; add sweeteners; add flavors; modify recipes; or permit any third party to do any of these activities.

14.4 Only MuscleBoxPro-authorized personnel may refill, replace, or modify Machine ingredients.

14.5 This restriction exists to protect food safety, product consistency, recipe integrity, ingredient traceability, quality control, and MuscleBoxPro intellectual property.

15. PROTEIN AND INGREDIENT REPLENISHMENT

15.1 MuscleBoxPro shall be responsible for filling and replenishing protein powder and other approved ingredients.

15.2 MuscleBoxPro shall, as applicable: monitor ingredient levels; replenish ingredients; check expiry information; maintain batch information; replace expired/unsuitable ingredients; and maintain appropriate ingredient-handling procedures.

15.3 The Gym shall provide reasonable access for such activities.

15.4 The Gym shall not independently purchase or refill ingredients for the Machine without written authorization from MuscleBoxPro.

15.5 The Gym may report a stock-out or low-ingredient condition to MuscleBoxPro's designated contact, and MuscleBoxPro shall use reasonable efforts to replenish within 3 business days (see also Clause 12.6).

16. MACHINE USAGE RESTRICTIONS

The Gym shall not: - open electrical/electronic compartments; - modify firmware or software; - bypass safety systems; - change recipes or alter ingredient quantities; - interfere with IoT systems or payment systems; - attach unauthorized equipment; - paint or structurally modify the Machine; - drill or cut the Machine; - relocate the Machine; - permit unauthorized technicians to service the Machine; or - allow another business to operate the Machine.

17. INSTALLATION AND ACCEPTANCE

17.1 MuscleBoxPro shall install the Machine at the agreed location.

17.2 The Parties shall complete a Machine Installation & Acceptance Certificate at installation (Schedule A).

17.3 The certificate shall record Machine ID, serial number, installation date, Machine condition, accessories, photographs, electrical testing, payment testing, dispensing testing, and signatures of authorized representatives.

17.4 Photographs may be retained by MuscleBoxPro as evidence of the Machine's condition at handover.

17.5 MuscleBoxPro shall ensure the Machine carries applicable electrical safety certification (e.g., BIS or equivalent) prior to installation and shall provide evidence of the same to the Gym upon reasonable request.

18. MAINTENANCE

18.1 MuscleBoxPro shall be responsible for normal preventive and corrective maintenance.

18.2 Maintenance may include inspection, cleaning, mixer inspection, calibration, software updates, component replacement, payment-system checks, ingredient-system inspection, and general operational testing.

18.3 Normal wear and tear shall generally be the responsibility of MuscleBoxPro.

18.4 Damage arising from misuse, negligence, unauthorized modification, vandalism, theft, or other Gym-attributable causes shall be the responsibility of the Gym.

19. SERVICE AND DOWNTIME

19.1 MuscleBoxPro shall use reasonable efforts to restore the Machine following a technical fault, and shall target initial response within 2 business days of a fault being reported.

19.2 MuscleBoxPro shall not be responsible for downtime caused by power failure, internet/network failure, payment-provider failure, misuse, vandalism, theft, unauthorized modification, unsuitable premises, water supply issues, Gym closure, force majeure, or other circumstances outside MuscleBoxPro's reasonable control.

19.3 Except as set out in Clause 19.4, MuscleBoxPro does not guarantee uninterrupted operation or a specific uptime percentage.

19.4 **Uptime commitment.** Excluding downtime attributable to causes under Clause 19.2, MuscleBoxPro shall use commercially reasonable efforts to maintain the Machine in operating condition for at least 90% of the Gym's operating hours in each calendar month. If this threshold is missed for reasons within MuscleBoxPro's reasonable control in two consecutive months, the Gym's electricity reimbursement for the second such month shall be increased by 25% as a service credit, without prejudice to the Gym's rights under Clause 12.6.

20. MACHINE SECURITY AND DAMAGE

20.1 The Gym shall exercise reasonable care to protect the Machine.

20.2 The Gym shall immediately notify MuscleBoxPro of physical damage, theft, attempted theft, vandalism, fire, water damage, electrical damage, unauthorized access, or any other material incident.

20.3 Damage attributable to the Gym, its employees, contractors, customers, members, or persons under its control shall be recoverable from the Gym.

20.4 MuscleBoxPro may use the security deposit toward such costs.

20.5 Where the damage exceeds ₹50,000, the Gym shall pay the balance.

21. RELOCATION

21.1 The Gym shall not relocate the Machine without prior written approval.

21.2 Relocation to another branch or premises shall require written approval.

21.3 MuscleBoxPro may charge reasonable transportation, dismantling, installation, and reinstallation costs for approved relocation.

21.4 Unauthorized relocation shall constitute a material breach.

21.5 Unless otherwise agreed in writing, relocation of the Machine does not reset the cumulative cup count, cumulative sales figure, or the Milestone under Clause 6.3.

22. SOFTWARE, FIRMWARE AND IoT

22.1 All software, firmware, Machine interfaces, cloud systems, dashboards, APIs, and related technology remain the property of MuscleBoxPro or its licensors.

22.2 The Gym receives no ownership rights in such technology.

22.3 The Gym shall not copy software, reverse engineer, extract source code, bypass security, modify firmware, access unauthorized APIs, interfere with telemetry, or disable monitoring systems.

22.4 MuscleBoxPro may remotely monitor Machine status, transactions, ingredient levels, errors, and operational information for legitimate business, maintenance, and analytics purposes.

23. SALES AND TRANSACTION RECORDS

23.1 Sales shall be recorded through the Machine's applicable payment and transaction systems.

23.2 MuscleBoxPro may maintain cup count, transaction value, payment status, refunds, Machine status, ingredient usage, maintenance records, and other operational information.

23.3 Such records shall be used for settlement and performance review, subject to the Gym's audit right under Clause 6.6.

23.4 The Parties shall cooperate to resolve demonstrable errors.

24. FOOD SAFETY AND REGULATORY COMPLIANCE

24.1 The Parties acknowledge that the Machine is used for the automated sale/dispensing of food and beverages.

24.2 FSSAI recognizes Food Vending Agencies as a category covering sale of packaged/fresh food through machines or automation.

24.3 **FBO allocation.** MuscleBoxPro shall be the Food Business Operator responsible for the food-vending activities relating to the Machine, including ingredient sourcing, approved formulations, ingredient replenishment, batch traceability, Machine hygiene, cleaning, water handling, food-quality procedures, and relevant food-safety documentation and licensing (including any Food Vending Agency registration) for the Machine. This allocation is independent of, and does not affect, any separate FSSAI registration the Gym may hold for its own unrelated food and beverage operations at the premises.

24.4 The Gym shall not independently alter, prepare, or handle the ingredients used by the Machine.

24.5 Each Party shall obtain and maintain the registrations/licenses applicable to its respective responsibilities under Clause 24.3.

24.6 Both Parties shall cooperate with lawful regulatory inspections, complaints, investigations, and food-safety incidents.

25. CLEANING AND HYGIENE

25.1 MuscleBoxPro shall maintain the Machine according to its prescribed cleaning and sanitation procedures.

25.2 The Gym shall maintain reasonable cleanliness around the Machine.

25.3 The Gym shall not use chemicals or cleaning methods that may damage the Machine.

25.4 MuscleBoxPro may maintain cleaning and sanitation records.

26. INGREDIENT TRACEABILITY

MuscleBoxPro may maintain records including ingredient, supplier, batch number, manufacturing date, expiry date, quantity, refill date, Machine ID, and person performing the refill. These records may be used for quality control, investigation, and recall purposes.

27. CUSTOMER COMPLAINTS AND INCIDENTS

27.1 The Gym shall promptly inform MuscleBoxPro of material complaints relating to product quality, Machine malfunction, payment, contamination, foreign objects, illness, allergic reaction, injury, or other safety concerns.

27.2 The Gym shall not make unsupported statements about the cause of an incident.

27.3 MuscleBoxPro shall investigate incidents relating to the Machine, ingredients, and its operating procedures, and shall share a summary outcome with the Gym within 10 business days where the incident was reported by or through the Gym.

27.4 Both Parties shall cooperate with each other and competent authorities where required.

28. BRANDING AND ADVERTISING

28.1 MuscleBoxPro branding remains the property of MuscleBoxPro.

28.2 The Gym shall not remove MuscleBoxPro branding; cover the logo; modify branding; represent the Machine as Gym-owned; create confusingly similar branding; or use MuscleBoxPro intellectual property outside this Agreement.

28.3 MuscleBoxPro may display advertisements on the Machine.

28.4 Advertising revenue shall be shared according to Clause 9.

29. INTELLECTUAL PROPERTY

29.1 All MuscleBoxPro trademarks, logos, recipes, formulations, Machine designs, software, technical documentation, operating procedures, and proprietary information remain the property of MuscleBoxPro or its licensors.

29.2 No intellectual property rights are transferred to the Gym.

29.3 The Gym shall not reproduce, copy, or commercially exploit MuscleBoxPro intellectual property without written authorization.

30. DATA AND PRIVACY

30.1 The Machine and related systems may process transaction and operational information.

30.2 Where personal information is collected, it shall be handled in accordance with applicable law, including the Digital Personal Data Protection Act, 2023, to the extent applicable.

30.3 Wherever practical, sensitive payment credentials shall be processed by authorized payment service providers rather than stored directly by MuscleBoxPro.

30.4 MuscleBoxPro may use non-personalized operational data for analytics, Machine optimization, maintenance, planning, performance measurement, and product improvement.

30.5 Transaction and customer data shall be retained only for such period as is reasonably necessary for settlement, tax, legal, and regulatory purposes, in accordance with applicable law.

31. INSURANCE AND RISK

31.1 MuscleBoxPro shall maintain insurance appropriate to the Machine's replacement value against fire, theft, and physical damage, to the extent commercially available on reasonable terms. Each Party shall otherwise be responsible for insurance appropriate to its own operations and risks where legally required or commercially appropriate.

31.2 The Gym shall immediately notify MuscleBoxPro of any incident affecting the Machine that may result in an insurance claim.

31.3 The Parties may agree to additional insurance requirements in writing.

32. GYM REPRESENTATIONS

The Gym represents that: it has authority to enter into this Agreement; its signatory is authorized; it has the right to permit Machine placement at the premises; it shall comply with applicable laws; it shall not knowingly permit unlawful use of the Machine; and information provided to MuscleBoxPro is materially accurate.

33. INDEMNIFICATION

33.1 The Gym shall indemnify MuscleBoxPro against losses, claims, costs, and damages arising from Gym negligence, unauthorized Machine modification, misuse, unauthorized relocation, intentional damage, breach of this Agreement, unauthorized ingredient handling, or acts/omissions of persons under the Gym's control.

33.2 MuscleBoxPro shall indemnify the Gym against losses, claims, costs, and damages arising from MuscleBoxPro's negligence, willful misconduct, material breach of this Agreement, or defects in ingredients/formulations supplied by MuscleBoxPro, subject to Clause 34.

33.3 Each Party's indemnification obligation is subject to: (a) prompt written notice of the claim; (b) the indemnifying Party being given control of the defense; and (c) reasonable cooperation from the indemnified Party.

34. LIMITATION OF LIABILITY

34.1 To the maximum extent permitted by applicable law, neither Party shall be liable to the other for indirect, incidental, special, or consequential losses, including loss of profit or loss of business opportunity.

34.2 Subject to Clause 34.3, the aggregate liability of either Party arising out of or in connection with this Agreement, whether in contract, tort, or otherwise, shall not exceed the greater of ₹2,00,000 or the total Gym profit-share amounts paid by MuscleBoxPro to the Gym under Clause 6 in the 12 months preceding the event giving rise to the claim.

34.3 The cap in Clause 34.2 shall not apply to: (a) a Party's indemnification obligations under Clause 33; (b) losses arising from fraud or willful misconduct; (c) infringement of the other Party's intellectual property; or (d) liability that cannot lawfully be excluded or limited.

35. TERMINATION BY MUSCLEBOXPRO

MuscleBoxPro may terminate the Agreement and recover the Machine if the Gym: fails to make required payments; materially breaches this Agreement; damages the Machine; permits unauthorized modification; relocates the Machine without approval; interferes with software/IoT; handles ingredients without authorization; becomes insolvent or ceases operations; engages in unlawful activity involving the Machine; or repeatedly breaches operational requirements, in each case after 15 days' written notice and opportunity to

cure (except for unauthorized relocation, unauthorized ingredient handling, or insolvency, which may be treated as incurable).

MuscleBoxPro may also remove the Machine following a three-month commercial performance review in accordance with Clause 12.

36. TERMINATION BY GYM

36.1 The Gym may request early termination by providing 30 days' written notice.

36.2 If the Gym terminates before expiry of the agreed 24-month term other than under Clause 12.6, the Gym shall pay an early-termination amount equal to the **lower of**: (a) 3 months' trailing average monthly net settlement amount received by the Gym under Clause 8; or (b) 15% of the Machine Value stated in Clause 2, plus MuscleBoxPro's actual, reasonable Machine removal and transportation cost. No early-termination amount is payable where the Gym terminates under Clause 12.6.

36.3 The Gym shall remain responsible for all outstanding amounts until final settlement and Machine return.

37. MACHINE RETURN AND RECOVERY

37.1 Upon expiry or termination, the Gym shall provide MuscleBoxPro reasonable access to retrieve the Machine within 10 business days.

37.2 MuscleBoxPro shall inspect the Machine.

37.3 The Parties shall complete a Machine Return Certificate (Schedule H).

37.4 The inspection may include physical condition, serial number, accessories, touchscreen, payment hardware, ingredient containers, and electrical components.

37.5 Damage beyond normal wear and tear may be charged to the Gym.

37.6 Where termination or recovery is attributable to the Gym's breach, MuscleBoxPro may recover reasonable transportation and retrieval costs.

38. EFFECT OF TERMINATION

Upon termination: the Gym's right to operate the Machine ceases; the Machine shall be returned; MuscleBoxPro branding shall no longer be used; outstanding amounts shall be settled; the security deposit shall be adjusted; remaining deposit shall be refunded where applicable; and confidential information shall continue to be protected per Clause 40.4. Clauses concerning ownership, intellectual property, confidentiality, indemnity, payment obligations, liability, and dispute resolution shall survive termination to the extent applicable.

39. FORCE MAJEURE

Neither Party shall be liable for delay or failure caused by circumstances beyond reasonable control, including natural disasters, fire, flood, war, government restrictions, epidemic/pandemic, major infrastructure failure, prolonged power outage, internet failure, strikes, civil disturbance, or comparable events. A Party invoking this Clause shall notify the other within 5 business days and shall use reasonable efforts to mitigate the impact. If a force majeure event continues for more than 60 consecutive days, either Party may terminate this Agreement by written notice without any early-termination charge or penalty.

40. CONFIDENTIALITY

40.1 Each Party shall keep confidential commercially sensitive information received from the other Party, including pricing, recipes, business plans, technical information, Machine information, customer information, sales information, and proprietary processes.

40.2 Disclosure shall be permitted where required by law or reasonably necessary to perform the Agreement.

40.3 Each Party shall use the other's confidential information solely to perform its obligations under this Agreement.

40.4 This Clause 40 shall survive termination or expiry of this Agreement for a period of 3 years, except for trade secrets (including MuscleBoxPro's recipes and formulations), which shall remain confidential for as long as they retain trade-secret status.

41. NOTICES

Formal notices between the Parties shall be delivered in writing by email (with read confirmation or a follow-up call) or by registered post/courier to the addresses on record in the signed placement agreement, and shall be deemed received: (a) on the same business day if sent by email before 6 PM IST on a business day; or (b) 3 business days after dispatch if sent by registered post/courier.

42. ASSIGNMENT

42.1 The Gym shall not assign or transfer this Agreement or any rights relating to the Machine without prior written consent of MuscleBoxPro.

42.2 MuscleBoxPro may assign the Agreement to an affiliate, successor, or purchaser of the relevant business, subject to applicable law and written notice to the Gym.

42.3 **Change of control.** The Gym shall notify MuscleBoxPro in writing within 15 days of any change in control or transfer of a majority ownership/partnership interest in the Gym entity. Such a change shall not by itself terminate this Agreement, but MuscleBoxPro may review the continued placement of the Machine in light of the new ownership.

43. ENTIRE AGREEMENT

43.1 This Agreement and its Schedules constitute the entire agreement between the Parties regarding placement and operation of the Machine and supersede prior discussions relating to the same subject matter.

43.2 **Order of precedence.** In the event of a conflict between the body of this Agreement and any Schedule, the body of this Agreement shall prevail, unless the relevant Schedule expressly states that it overrides a specific clause.

44. AMENDMENTS

Any material amendment shall be made in writing and signed/accepted by authorized representatives of both Parties.

45. SEVERABILITY

If any provision is determined to be invalid or unenforceable, the remaining provisions shall continue to the extent permitted by law, and the Parties shall negotiate in good faith to replace the invalid provision with one that achieves the original intent as closely as possible.

46. GOVERNING LAW AND DISPUTE RESOLUTION

46.1 This Agreement shall be governed by the laws of India.

46.2 The Parties shall first attempt to resolve any dispute amicably through good-faith discussion between designated senior representatives within 30 days of written notice of the dispute.

46.3 If a dispute is not resolved amicably within that 30-day period, it shall be referred to and finally resolved by arbitration under the Arbitration and Conciliation Act, 1996, by a sole arbitrator appointed by mutual agreement of the Parties (or, failing agreement within 15 days, appointed in accordance with that Act). The seat and venue of arbitration shall be Bengaluru, Karnataka, and the language of arbitration shall be English.

46.4 Subject to Clause 46.3, the courts at Bengaluru, Karnataka shall have exclusive jurisdiction over matters not referable to arbitration (including interim relief).

47. GYM EXCLUSIVITY / NON-COMPETE

47.1 During the Term, MuscleBoxPro shall not place, or knowingly permit a third party to place, a directly competing automated protein-shake vending machine of a different brand at the same Gym premises where the Machine is installed.

47.2 This Clause does not restrict the Gym's ability to sell packaged, pre-made, or manually-prepared protein shakes or supplements through its own staff or counter, or through vending machines dispensing products other than automated fresh protein shakes.

47.3 This Clause does not prevent MuscleBoxPro from placing additional MuscleBoxPro Machines at the same premises by mutual written agreement.

48. GST AND INVOICING

48.1 MuscleBoxPro shall be responsible for issuing tax invoices to end customers for protein shake sales made

through the Machine and for GST compliance (including registration of the Machine's location as an additional place of business, if required under applicable law) relating to such sales.

48.2 The Gym shall not be treated as a co-supplier or joint taxable person in respect of Machine sales solely by virtue of hosting the Machine, and shall reasonably cooperate with MuscleBoxPro (e.g., providing premises documentation) as needed for MuscleBoxPro's GST registration or compliance relating to the Machine.

48.3 Each Party shall separately be responsible for GST compliance relating to its own independent revenue streams (e.g., the Gym's membership fees, or MuscleBoxPro's advertising revenue arrangements with third parties, subject to Clause 9).

49. STAMP DUTY AND EXECUTION

This Agreement shall be executed on stamp paper of the value prescribed under the applicable Stamp Act of the state in which the Machine is installed, for an agreement of this nature. Stamp duty and execution costs shall be borne equally by both Parties unless otherwise agreed in writing.

50. NO WAIVER

No failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver of that right, nor shall any single or partial exercise of a right preclude any other or further exercise of that or any other right. Any waiver must be in writing and signed by the waiving Party to be effective.

51. COUNTERPARTS AND ELECTRONIC EXECUTION

This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. This Agreement may be executed electronically (including by digital or electronic signature recognized under the Information Technology Act, 2000), and such execution shall be as valid and binding as physical execution.

SCHEDULE B — COMMERCIAL TERMS

Commercial Item	Agreed Term
Machine Ownership	MuscleBoxPro
Security Deposit	₹50,000
Agreement Term	24 months
Initial Profit Share	80% MuscleBoxPro / 20% Gym
Milestone (whichever first)	15,000 completed paid cups or ₹5,00,000 cumulative Gross Protein Shake Sales
Post-Milestone Profit Share	50% MuscleBoxPro / 50% Gym
Advertising Revenue	80% MuscleBoxPro / 20% Gym
Electricity Reimbursement	₹1,000 per completed 1,000 cups
Minimum Electricity Reimbursement	₹1,000 per 3 months
Electricity Carry Forward	No
Performance Review	Every 3 months
Uptime Commitment	90% of Gym operating hours/month (see Cl. 19.4)
Machine Removal Notice (MuscleBoxPro)	15 days
Machine Removal Notice (Gym, under Cl. 12.6)	15 days
Protein Replenishment	MuscleBoxPro
Water Replenishment & Cost	MuscleBoxPro
Normal Maintenance	MuscleBoxPro
Gym Electricity	Gym, reimbursed as specified
Monthly Settlement	Within 15 days after month-end (late-payment interest 12% p.a. — Cl. 8.5)
Gym Early Termination Notice	30 days

Early Termination Charge	Lower of 3 months' trailing avg. settlement, or 15% of Machine Value + removal cost (see Cl. 36.2)
Exclusivity	No competing protein-vending brand at same premises during Term (Cl. 47)
GST/Invoicing	MuscleBoxPro invoices end customers; responsible for GST compliance on Machine sales
Liability Cap	Greater of ₹2,00,000 or 12 months' Gym profit-share paid (Cl. 34)
Confidentiality Survival	3 years post-termination (trade secrets indefinite)
Arbitration Seat	Bengaluru, Karnataka
Minimum Placement Before Removal	6 months from Installation Date (Cl. 12.4)
Retail Pricing Authority	MuscleBoxPro (7 days' notice for changes >10%) — Cl. 6.7
Milestone Tracking (multi-machine)	Per Machine, unless aggregated in writing — Cl. 6.3
Force Majeure Outside Limit	Either Party may terminate after 60 continuous days — Cl. 39
Withholding Tax (TDS)	Each Party responsible for its own TDS — Cl. 8.6

SCHEDULE C — PROFIT CALCULATION

Step 1 — Gross Customer Sales: Total amount received from completed paid customer transactions, excluding GST/other taxes collected on behalf of the Government.

Step 2 — Deduct Direct Variable Costs: Ingredient cost; cup/package cost; payment processing charges; refunds; applicable promotional discounts; and other specifically agreed direct variable costs.

Step 3 — Net Profit: Gross Sales – Direct Variable Costs.

Step 4 — Profit Sharing: - Until the Milestone (15,000 cups or ₹5,00,000 cumulative Gross Protein Shake Sales, whichever first) is reached: **80% MuscleBoxPro / 20% Gym**. - From the Milestone onward: **50% MuscleBoxPro / 50% Gym**.

Advertising: 80% MuscleBoxPro / 20% Gym (Milestone does not affect this ratio).

SCHEDULE D — GYM RESPONSIBILITIES

- Provide suitable floor space
- Provide electricity
- Protect the Machine
- Provide reasonable Machine access
- Not modify the Machine
- Not move the Machine
- Not add/remove protein or modify recipes
- Not perform unauthorized servicing
- Report damage immediately
- Report customer safety complaints
- Maintain cleanliness around the Machine
- Provide agreed water access
- Permit MuscleBoxPro personnel to refill ingredients and water
- Follow Machine operating instructions
- Cooperate with Machine maintenance

SCHEDULE E — MAINTENANCE & SERVICE

MuscleBoxPro Responsibilities: - Preventive maintenance and inspection - Mixer inspection and cleaning -

Software updates - Payment-system checks - Ingredient-system inspection - Component replacement - Troubleshooting (target initial response: 2 business days — Cl. 19.1)

Damage caused by misuse, unauthorized modification, vandalism, theft, negligence, unauthorized servicing, electrical conditions outside specifications, physical impact, or other Gym-attributable causes may be charged to the Gym.

SCHEDULE F — FOOD SAFETY & HYGIENE

MuscleBoxPro, as Food Business Operator for the Machine (Cl. 24.3), shall maintain procedures relating to approved ingredients, ingredient storage, batch tracking, expiry management, Machine cleaning, sanitation, water handling, ingredient replenishment, complaint handling, recall procedures, and applicable food-safety requirements and licensing.

The Gym shall not independently handle, add, remove, or modify Machine ingredients.

Each Party shall maintain registrations/licenses applicable to its own responsibilities under Clause 24.

SCHEDULE G — ADVERTISING

MuscleBoxPro may display advertising on the Machine screen, Machine display area, approved physical Machine surfaces, and other mutually agreed Machine advertising locations.

Advertising revenue shall be shared 80% MuscleBoxPro / 20% Gym throughout the Term, regardless of the shake-sale profit-sharing ratio then in effect. No minimum advertising revenue is guaranteed.

SCHEDULE I — DEFINITIONS

For ease of reference, this Schedule consolidates the key defined terms used throughout the Agreement. Each term remains substantively governed by the clause where it is originally defined; this Schedule does not itself create new obligations.

Term	Meaning	Defined In
Machine	The MuscleBoxPro automated protein shake vending machine(s) placed at the Gym's premises under this Agreement.	Clause 1.2
Term	The 24-month initial duration of this Agreement (Clause 4.2), together with any renewed term agreed under Clause 4.3.	Clause 4
Milestone	The point at which the profit-sharing ratio shifts from 80:20 to 50:50 — reached on the earlier of 15,000 cumulative completed paid cups, or ₹5,00,000 cumulative Gross Protein Shake Sales.	Clause 6.3
Gross Customer Sales / Gross Protein Shake Sales	Total amount received from completed paid customer transactions through the Machine, excluding GST/other indirect taxes.	Clauses 6.3, 7
Net Profit	Gross Customer Sales minus applicable taxes minus agreed Direct Variable Costs.	Clause 7
Direct Variable Costs	Ingredient cost, cup/package cost, payment gateway charges, refunds, agreed promotional discounts, and other Party-agreed direct variable costs.	Clause 7.1
FBO	Food Business Operator, as	Clause 24.3

	recognized under applicable FSSAI regulations; allocated to MuscleBoxPro for the Machine under Clause 24.3.	
Confidential Information	Commercially sensitive information exchanged between the Parties, including pricing, recipes, business plans, technical, Machine, customer, and sales information.	Clause 40.1

These standard terms are subject to periodic revision by MuscleBoxPro. The version in effect at the time a placement agreement is signed governs that placement for its term.